

were filed in support of the petition for final distribution by the removed administrator and such petition was denied. The petitioner must file any supporting documents with the instant petition before the court.

4. Assignments: The petitioner requested that the court interpret the disclaimers as assignments. The court does not intend to grant this request. If the petitioner intends to seek assignments rather than disclaimers, the petitioner must file assignments by each heir assigning their respective interest to the petitioner.

5. Deceased Heir, Phillip Hines's Interest: The petition seeks to distribute the deceased heir's interest to his siblings. However, the court does not intend to grant this request. The distribution must be made through the proper method authorized by probate statutes. (See Prob. Code §§11801, 11802, et seq.)

6. Waiver of Accounting: The petition seeks to waive the accounting. However, there are no waivers of accounting by all heirs on file. Absent waivers by all beneficiaries, the petitioner must provide an accounting. Account Waivers must conform to Solano County Local Rule 7.71 or the petitioner may use Local Form 7001-PR.

7. Omnibus: The prayer seeks to distribute any remaining estate not known or discovered in the future to be made to the petitioner. However, the decedent left a will which provided equal shares for her seven issues. The previous disclaimer only disclaimed interest in the real property, not any other property and is not valid. If the petitioner seeks this relief, the heirs must assign any and all of their future interest to her in an assignment filed with the court under oath.

8. Caption: Counsel is reminded that in probate matters, the "title of each pleading and of each proposed order must clearly and completely identify the nature of the relief sought or granted." (Cal. Rules of Court, Rule 7.102.) Here, the caption on the petition did not mention of denial of statutory compensation to the previous administrator.

LINE

3

IN RE THE ESTATE OF BETTY LOU JONES, DECEASED
PR23-00068

First and Final Report of Administrator; Waiver of Account; Petition for Final Distribution; For Allowance of Compensation to Administrator; Reimbursement of Expenses; Payment of Statutory Attorney's Fees; and Reimbursement of Costs

PREGRANT ORDER

The court on its own motion continues this hearing to July 22, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Pursuant to Probate Code section 12200(a), a personal representative is to file either a petition for final distribution or a status report within one year of the date letters are issued if no estate tax return is required, and within eighteen months of the date letters are issued if an estate tax return is required. As the estate is of an insufficient size to require an estate tax return, the petition for final distribution or a status report was due by August 14, 2024. No petition was filed until April 10, 2026. The court notes that a Status Report was filed with the court to continue the administration of the estate in 2025, but not placed on calendar as required by Probate Code §12201, et seq. There was no Notice of Hearing with proof of service was filed with the court and no explanation was given for the delay.
2. Statutory Fee Calculation: The statutory fee calculation did not include any losses for the sale of real property. (See Prob. Code §10810 (b).) It appears that the real property was valued at \$585,000, but sold for \$550,000. Court Staff calculates the statutory fee to be \$14,067.78 and not \$14,767.78.
3. There was no value provided for real property listed in Attachment 2 of the inventory and appraisal filed on March 5, 2024.

LINE

4

IN RE THE ESTATE OF SANDRA J. PERKINS, DECEASED PR25-00033

First and Final Report of Administrator on Waiver of Account, Petition for Final Distribution and Allowance of Compensation to Administrator and Attorneys for Statutory Services

PREGRANT ORDER

The court on its own motion continues this hearing to July 22, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Petition, ¶18-Sale of Real Property: The petitioner shall provide a copy of the seller's closing statement for the court's review and consideration.
2. Petition, ¶27-Reserve for Closing Expenses *Advisory Only*: The petitioner seeks a reserve of \$5,000. However, the court will require that the petitioner attach an informal accounting to the ex parte petition for final discharge and order.